ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	160th Commission Meeting
DATE:	17 January 2024
TIME:	03:30 PM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Regular HR Update – HRS HRS apprised the Commission on the HRC meeting as follows: - *RCSC's approval on Tashi Dema & Kezang Dorji's study leave and update on the commencement of Jangchu Tshomo's study program.* - *Explore the proposal on 'Foundations of Intelligence Analysis Training' from the region with advanced areas for specialization.* - *PMS training schedule for P1 officials and sensitization on some of the key tenets of the PMS to the staff during the upcoming QSM.* - *Draft Internal Transfer Policy for the Regional Offices and subsequent familiarization during upcoming QSM.* - *Draft guideline on training gap requirement for STT & LTT.*	**Commission noted the decisions of the HRC with following additional directives to:** - **Request RCSC to extend PMS training for Acting Director, DoPE. Also, include Heads of DARe, LD, PPD & SS, irrespective of their position level, as these officials are involved in pre-moderation exercise.** - **Fix some of the functionality issues in the existing Leave & Attendance system.**
2	Alignment of ACAB with Civil Service Reform Act of Bhutan 2022 (CSRA) in line with the LIA Assessment – LD *LD appraised the Commission on the RCSC's letter in pursuant to the Cabinet's directive to conduct LIA on existing laws/rules of respective agencies in line with the CSRA.* *In the context of ACAB, having Ministry of Foreign Affairs renamed as Ministry of Foreign Affairs and External Trade with the adoption of the CSRA will have cascading effect on Sections 141, 147,158 and 158 though not on the spirit of these sections. In this regard, LD recommended to propose the following as options:* 1. *Amend ACAB in line with Section 8(9) of the CSRA.*	**Commission endorsed the recommendation to go with option 2 & 3 with the directive to also include amendment of section 8 under chapter 2 of ACAB along with those affected sections.**

	2. *Propose for adoption of Mutual Legal Assistance (MLA) Law as it will supersede these sections which is in relation to MLA to foreign countries and the execution of foreign MLA requests by Bhutan.* 3. *Continue constructing the term 'minister responsible for foreign affairs' as minister responsible for foreign affairs and external trade as per section (8)9 of the CSRA until the Parliament adopts the MLA law as per section 7 of CSRA.* *Given the choice, LD recommended to go with option 2 & 3. However, if the decision is to amend the ACAB, LD proposed to also include amendment of section 8 under Chapter 2 of the ACAB.*	
3	Request from Tashi Infocomm Pvt. Ltd. to lease space on rooftop of the ACC building in Phuntsholing – PPD *Commission deliberated on the request from the perspective of technical feasibility vis-à-vis the security concerns, confidentiality issues, and potential health hazards to the staff, among others. Additionally, discussed on the rental rates against the prevailing market rate for leasing space for such purpose.*	**Commission directed to further discuss the matter with the Tashi Infocomm Pvt. Ltd. regarding the rental rate vis-à-vis market value. However, the Commission emphasized to clearly communicate during the discussion that the approval, if granted, will be strictly for the purpose of mobile only. Furthermore, emphasized that the request to share server room will not be approved, and access to the building will be restricted due to the sensitive nature of the job.**
4	Replacement of Endowment Fund Committee member – Committee *Member Secretary of the Endowment Fund Committee proposed the replacement of the Committee members as follow:* *1) Chhimi Wangmo, Sr. IPO in place of Sonam Drukpa; and* *2) Karma Wangmo, PA II in place of Kinzang Sherab.*	**Endorsed**
5	Any others: - Induction course for newly elected Members of the Parliament for National Assembly.	**Commission directed DoPE, DoPS and other relevant Departments/Divisions to start preparing PowerPoint slides for induction on topics viz. NIA, IVS, Complaints Management System, among others.**

-Bereavement Leave-

Commissioner **Commissioner** **Chairperson**

RCSC/LS-57/2023-24/2586 January 4, 2024

Secretary/Acting Secretary/Heads of Constitutional Offices
All Ministries/Constitutional/Autonomous Agencies
Thimphu

Subject : Legislative Impact Assessment

Dasho(s),

In continuation to letter No. C-3/144/2023/1662 dated 5 June, 2023 issued by Cabinet to conduct a legislative impact assessment for a specific set of acts necessitating potential amendments or changes, the RCSC as the central agency responsible for the civil service reform would like to seek a status update on the LIA and the alignment of the existing acts with the Civil Service Reform Act.

For Dasho(s) information, the OAG had identified 46 Acts that intersect with civil service reform and may need to be amended or changed to align with the reform objectives. Accordingly, the OAG has directed all legal officers in the ministries and agencies to commence the conduct LIA for those Acts in accordance with LIA Rules and Regulations 2020.

In light of the imminent change in government, it is imperative that the proposed amendments or changes to the Acts are prepared for review by the incoming government. We therefore request Dasho(s), to instruct all legal officers to ensure that the proposed modifications are finalized and ready for submission by the end of January.

Yours sincerely,

Annex 1: Legislative Proposal

Title of the proposal:

1. Type of Legal Measure: (e.g. Act, Rules and Regulations, other regulatory measure): Anti-Corruption Act of Bhutan

2. Lead Ministry/Commission/Agency: Anti-Corruption Commission of Bhutan (ACC)

3. Expected Date Of Adoption Day/Month/Year: 2025

PROBLEM IDENTIFICATION

Describe the problem that the proposal is expected to tackle:

With the adoption of the Civil Service Reform Act of Bhutan 2022 (CSRA), the Ministry of Foreign Affairs has been renamed as the Ministry of Foreign Affairs and External Trade under section 8 of the said Act. The change in the nomenclature has a cascading effect on sections 141, 147, 158, and 159 of the Anti-Corruption Act of Bhutan 2011 (ACAB) though not in the spirit of these sections. These sections of ACAB contain the phrase '... *minister responsible for Foreign Affairs*...' which differs from the nomenclature adopted in CSRA. Amendments to these sections will bring uniformity in the usage of names with the subsequent law – CSRA that has the superseding effect.

OBJECTIVE OF THE PROPOSAL

What is the “Objective” of the Proposal and what is expected out of the proposal.

The objective of the proposal is to ensure uniformity in the usage of names in the ACAB with that of CSRA.

POLICY OPTIONS

1. What are the options that are available to reach the objective and what range of alternatives will be considered?

The available options to reach the objectives are:

(i) Amendment of ACAB: The foremost option for realizing this objective is to amend sections 141, 147, 158, and 159 of ACAB to align with section 8(9) of CSRA.

(ii) Mutual Legal Assistance Law: The issue can be resolved if the Parliament opts to materialize the Mutual Legal Assistance Bill, which has been submitted for review by the Cabinet, into an independent Mutual Legal Assistance Law. Sections 141, 147, 158, and 159 of the ACAB deal with requests for mutual legal assistance (MLA) to foreign countries and the execution of foreign MLA requests by ACC in Bhutan. The adoption of MLA Law will supersede these sections. If the Parliament considers enacting MLA law, these sections can be subjected to repeal.

(iii) **Harmonious Construction:** Continue constructing the term 'Minister responsible for foreign affairs' as the minister responsible for foreign affairs and external trade as per section (8)9 of the CSRA until the Parliament adopts the MLA law as per section 7 of CSRA.

Preferred option: Given the choice, ACC would discard option 1 and prefer options (ii) and (iii). The nomenclature 'Ministry of Foreign Affairs and External Trade' adopted in section 8(9) of CSRA does not materially contradict and negate the spirit of sections 141, 147, 158, and 159 of ACAB. Amendment in ACAB to replace the phrase '…minister responsible for foreign affairs…', to align with the nomenclature adopted in CSRA will not alter the intent and true spirit of these sections. Therefore, ACC would prefer to construct these laws harmoniously as per section 7 of CSRA until the Parliament decides to enact the Mutual Legal Assistance Law.

2. How have the principles of subsidiarity and proportionality been taken into account?

Principle of subsidiarity: ACC does not have any room for considering the principle of subsidiarity as the ACC has no decision-making authority for legislating and amending the contravening laws. Given the choice, ACC would prefer maintaining the status quo as the existing phrase in the ACAB does not materially deviate from CSRA.

Principle of proportionality: The principle of proportionality is out of context with the issue at hand.

IMPACTS – POSITIVE AND NEGATIVE

1. On a preliminary basis, what are the likely positive and negative impacts of the selected options, particularly in terms of economic, social and environmental consequences?

By addressing the issue, it can ensure uniformity in the two Acts. The amendment of sections 141, 147, 158, and 159 of ACAB will not have any adverse economic, social, or environmental impact other than incurring minimal administrative costs in amending these sections.

2. Who would be affected?

As the amendment concerns the change in nomenclature and does not have any effect on the spirit of the legal provision, it will not affect anyone.

LD's Recommendations

1. **Preferred option**

2. **If decides to amend, should we also propose for amendment in section 8?**

THANK YOU

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by apryse

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